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U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:10-cv-00309-CBS-BNB

Squires v. Breckenridge Outdoor Education Center
Assigned to: Magistrate Judge Craig B. Shaffer
Referred to: Magistrate Judge Boyd N. Boland
Case in other court: USCA, 12-01199
USCA, 13-01176
Cause: 28:1332 Diversity-Personal Injury

Date Filed: 02/12/2010
Date Terminated: 04/12/2012
Jury Demand: Both
Nature of Suit: 360 P.I.: Other
Jurisdiction: Diversity

Plaintiff

Kimberly N. Squires
*by and through her guardian and natural
parent, Lyle K. Squires
other*
Lyle K. Squires

represented by **Colleen M. Parsley**
The Gold Law Firm
7375 East Orchard Road
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V.

Defendant

James Michael Goodwin
an individual
TERMINATED: 03/26/2012

represented by **Gary Palumbo**
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303-830-8911
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Defendant

Breckenridge Outdoor Education Center
a Colorado corporation

represented by **Deana R. Dagner**
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Defendant

Mountain Man, Inc.
a Montana corporation
TERMINATED: 11/07/2011

represented by **Timothy A. Meinert**
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ATTORNEY TO BE NOTICED

Date Filed	#	Docket Text
02/12/2010	<u>1</u>	COMPLAINT and Jury Demand against James Michael Goodwin, Breckenridge Outdoor Education Center (Filing fee \$ 350, Receipt Number 25785) Summons Issued, filed by Kimberly N. Squires. (Attachments: # <u>1</u> Civil Cover Sheet, # <u>2</u> Receipt)(jak,) (Entered: 02/12/2010)
02/17/2010	<u>2</u>	ORDER REFERRING CASE to Magistrate Judge Boyd N. Boland by Judge Philip A. Brimmer on 2/17/10. (pabcd) (Entered: 02/17/2010)
02/18/2010	<u>3</u>	ORDER: Scheduling Conference set for 4/16/2010 09:00 AM in Courtroom A 401 before Magistrate Judge Boyd N. Boland, by Magistrate Judge Boyd N. Boland on 2/18/10. (bnbcd,) (Entered: 02/18/2010)
04/08/2010	<u>4</u>	MINUTE ORDER: Scheduling Conference reset for 6/14/2010 09:00 AM in Courtroom A 401 before Magistrate Judge Boyd N. Boland, by Magistrate Judge Boyd N. Boland on 4/8/10. (bnbcd,) (Entered: 04/08/2010)
04/15/2010	<u>5</u>	AMENDED COMPLAINT against All Defendants, filed by Kimberly N. Squires. (Parsley, Colleen) (Entered: 04/15/2010)
04/15/2010	<u>6</u>	Unissued AMENDED <i>SUMMONS TO JAMES MICHAEL GOODWIN</i> by Plaintiff Kimberly N. Squires. (Parsley, Colleen) Modified on 4/19/2010 to add text to indicate the summons has not yet been issued (ebs,). (Entered: 04/15/2010)
04/15/2010	<u>7</u>	Unissued AMENDED <i>SUMMONS TO MOUNTAIN MAN, INC.</i> by Plaintiff Kimberly N. Squires. (Parsley, Colleen) Modified on 4/19/2010 to add text to indicate the summons has not yet been issued (ebs,). (Entered: 04/15/2010)
04/15/2010	<u>8</u>	Unissued AMENDED <i>SUMMONS FOR BRECKENRIDGE OUTDOOR EDUCATION CENTER</i> by Plaintiff Kimberly N. Squires. (Parsley, Colleen) Modified on 4/19/2010 to add text to indicate the summons has not yet been issued (ebs,). (Entered: 04/15/2010)
04/19/2010	9	Docket Annotation re: <u>5</u> Amended Complaint. Counsel has been asked to re-file this document now that all defendants have been entered into the system. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (ebs,) (Entered: 04/19/2010)
04/19/2010	10	Docket Annotation re: <u>6</u> , <u>7</u> , and <u>8</u> Amended Documents. These docket entries were modified to add text to indicate the summons have not yet been issued. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (ebs,) (Entered: 04/19/2010)

04/19/2010	11	AMENDED COMPLAINT against All Defendants, filed by Kimberly N. Squires. (Parsley, Colleen) (Entered: 04/19/2010)
06/01/2010	12	ORDER TO SHOW CAUSE: returnable by Plaintiff why this case should not be dismissed for lack of subject-matter jurisdiction based on diversity. Show Cause Response due by 6/14/2010, by Judge Philip A. Brimmer on 6/1/10. (ebs,) (Entered: 06/02/2010)
06/02/2010	13	AMENDED COMPLAINT <i>Second</i> against All Defendants, filed by Kimberly N. Squires. (Parsley, Colleen) (Entered: 06/02/2010)
06/03/2010	14	MINUTE ORDER discharging 12 Order to Show Cause, by Judge Philip A. Brimmer on 6/3/10. (ebs,) (Entered: 06/03/2010)
06/03/2010	15	First MOTION for Extension of Time to <i>Comply with Minute Order</i> by Plaintiff Kimberly N. Squires. (Parsley, Colleen) (Entered: 06/03/2010)
06/03/2010	16	MEMORANDUM regarding 15 First MOTION for Extension of Time to <i>Comply with Minute Order</i> filed by Kimberly N. Squires.Motion referred to Magistrate Judge Boyd N. Boland by Judge Philip A. Brimmer on 6/3/10. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(pabcd) (Entered: 06/03/2010)
06/03/2010	17	MINUTE ORDER: granting 15 Motion for Extension of Time to Comply with Minute Order. Scheduling Conference reset for 7/15/2010 08:30 AM in Courtroom A 401 before Magistrate Judge Boyd N. Boland, by Magistrate Judge Boyd N. Boland on 6/3/10. (bnbcd,) (Entered: 06/04/2010)
06/16/2010	18	ANSWER to 13 Amended Complaint by James Michael Goodwin.(Palumbo, Gary) (Entered: 06/16/2010)
06/22/2010	19	SUMMONS Returned Executed by Kimberly N. Squires. All Defendants. (Parsley, Colleen) (Entered: 06/22/2010)
06/22/2010	20	SUMMONS Returned Executed by Kimberly N. Squires. All Defendants. (Parsley, Colleen) (Entered: 06/22/2010)
06/22/2010	21	SUMMONS Returned Executed by Kimberly N. Squires. All Defendants. (Parsley, Colleen) (Entered: 06/22/2010)
06/23/2010	22	Docket Annotation re: 19 , 20 , and 21 Summonses Returned Executed. Counsel has been asked to re-file these documents by choosing each individual defendant as the party who was served and entering the date they were served. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (ebs,) (Entered: 06/23/2010)
06/24/2010	23	SUMMONS Returned Executed by Kimberly N. Squires. Mountain Man, Inc. served on 6/3/2010, answer due 6/24/2010. (Parsley, Colleen) Modified on 6/25/2010 to add defendant who was served, the service date, and answer due date (ebs,). (Entered: 06/24/2010)
06/24/2010	24	SUMMONS Returned Executed by Kimberly N. Squires. James Michael Goodwin served on 6/4/2010, answer due 6/25/2010. (Parsley, Colleen) Modified on 6/25/2010 to add defendant who was served, the service date, and answer due date (ebs,). (Entered: 06/24/2010)
06/24/2010	25	SUMMONS Returned Executed by Kimberly N. Squires. Breckenridge Outdoor Education Center served on 6/4/2010, answer due 6/25/2010. (Parsley, Colleen) Modified on 6/25/2010 to add defendant who was served, the service date, and answer due date (ebs,). (Entered: 06/24/2010)

06/25/2010	26	Docket Annotation re: 23 , 24 , and 25 Summonses Returned Executed. These docket entries were modified to add defendants who were served, the service dates, and answer due dates. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (ebs,) (Entered: 06/25/2010)
06/25/2010	27	ANSWER to 13 Amended Complaint by Breckenridge Outdoor Education Center. (Allgaier, Joan) (Entered: 06/25/2010)
06/25/2010	28	MOTION for Extension of Time to <i>Designate Nonparties At Fault</i> by Defendant Breckenridge Outdoor Education Center. (Allgaier, Joan) (Entered: 06/25/2010)
06/25/2010	29	NOTICE of Entry of Appearance by John W. Grund on behalf of Breckenridge Outdoor Education Center (Grund, John) (Entered: 06/25/2010)
06/28/2010	30	MEMORANDUM regarding 28 MOTION for Extension of Time to <i>Designate Nonparties At Fault</i> filed by Breckenridge Outdoor Education Center. Motion referred to Magistrate Judge Boyd N. Boland by Judge Philip A. Brimmer on 6/28/10. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (pabsec) (Entered: 06/28/2010)
06/30/2010	31	MINUTE ORDER: granting 28 BOECs Motion for Extension of Time to Designate Nonparties at Fault, by Magistrate Judge Boyd N. Boland on 6/30/10.(bnbcd,) (Entered: 06/30/2010)
07/07/2010	32	Stipulated MOTION to Continue <i>Scheduling Conference</i> by Defendant Breckenridge Outdoor Education Center. (Allgaier, Joan) (Entered: 07/07/2010)
07/07/2010	33	MEMORANDUM regarding 32 Stipulated MOTION to Continue <i>Scheduling Conference</i> filed by Breckenridge Outdoor Education Center. Motion referred to Magistrate Judge Boyd N. Boland by Judge Philip A. Brimmer on 7/7/10. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (pabsec) (Entered: 07/07/2010)
07/08/2010	34	MINUTE ORDER: granting 32 Stipulated Motion to Continue SchedulingConference. Scheduling Conference reset for 9/15/2010 08:30 AM in Courtroom A 401 before Magistrate Judge Boyd N. Boland, by Magistrate Judge Boyd N. Boland on 7/8/10. (bnbcd,) (Entered: 07/08/2010)
08/05/2010	35	<i>Answer and Jury Demand</i> ANSWER to 13 Amended Complaint by Mountain Man, Inc.. (Meinert, Timothy) (Entered: 08/05/2010)
08/30/2010	36	DESIGNATION OF NON-PARTY by Defendant James Michael Goodwin. (Palumbo, Gary) (Entered: 08/30/2010)
09/02/2010	37	NOTICE <i>OF CHANGE OF FIRM NAME</i> by Defendant Breckenridge Outdoor Education Center (Allgaier, Joan) (Entered: 09/02/2010)
09/08/2010	38	Proposed Scheduling Order by Plaintiff Kimberly N. Squires. (Parsley, Colleen) (Entered: 09/08/2010)
09/15/2010	39	CONSENT to Jurisdiction of Magistrate Judge by Defendants Breckenridge Outdoor Education Center, James Michael Goodwin, Mountain Man, Inc., Plaintiff Kimberly N. Squires. (ebs,) (Entered: 09/15/2010)
09/15/2010	40	SCHEDULING ORDER: Discovery due by 4/15/2011. Dispositive Motions due by 5/15/2011. Settlement Conference set for 12/15/2010 01:30 PM in Courtroom A 401 before Magistrate Judge Boyd N. Boland, by Magistrate Judge Boyd N. Boland on 9/15/10. (ebs,) (Entered: 09/15/2010)

09/15/2010	41	MINUTE ORDER: Settlement Conference set for 12/15/2010 01:30 PM before Magistrate Judge Boyd N. Boland, by Magistrate Judge Boyd N. Boland on 9/15/10. (ebs,) (Entered: 09/15/2010)
09/15/2010	43	Minute Entry for proceedings held before Magistrate Judge Boyd N. Boland: Scheduling Conference held on 9/15/2010. Discovery cut-off is April 15, 2011; dispositive motion deadline is May 15, 2011; pltf shall designate all experts no later than January 3, 2011; dft shall designate all experts and rebuttal experts no later than February 3, 2011; pltf shall designate all rebuttal experts no later than March 3, 2011; Settlement Conference is scheduled for December 15, 2010 at 1:30 p.m.; Parties shall submit a Confidential Settlement Statement on or before December 8, 2010. Pretrial Conference will be set by the trial judge. (Court Reporter FTR: Ginny Kramer) (gkram) Modified on 9/17/2010 to correct grammar (wjc,). (Entered: 09/16/2010)
09/16/2010	42	ORDER OF REFERENCE Pursuant to 28 U.S.C. 636(c) Upon Consent to Jurisdiction of Magistrate Judge, by Judge Philip A. Brimmer on 9/16/10. (gmssl,) (Entered: 09/16/2010)
09/17/2010	44	LETTER REASSIGNING CASE. Case reassigned to Magistrate Judge Craig B. Shaffer for all further proceedings. Judge Philip A. Brimmer no longer assigned to the case. (wjc,) (Entered: 09/17/2010)
09/20/2010	45	ORDER OF REFERENCE AND ORDER. The 2 Order of Reference is hereby VACATED. Magistrate Judge Boyd N. Boland to convene such settlement conferences and direct related proceedings as may facilitate settlement of this case. The deadlines, discovery limitations, and schedule set forth in the 40 Scheduling Order remain unchanged. Telephone Status Conference set for 10/18/2010 at 10:45 AM in Courtroom A 402 before Magistrate Judge Craig B. Shaffer, by Magistrate Judge Craig B. Shaffer on 09/20/2010. (wjc,) (Entered: 09/20/2010)
09/29/2010	46	MINUTE ORDER resetting the Telephonic Status Conference to 10/27/2010 at 10:00 a.m., pursuant to an unopposed request made by counsel for defendant Goodwin. <i>Counsel shall coordinate to create a conference call among themselves before contacting the court (303.844.2117) at the scheduled time</i> , by Magistrate Judge Craig B. Shaffer on 9/29/10. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(cbssec) (Entered: 09/29/2010)
10/26/2010	47	Unopposed MOTION to Amend/Correct/Modify 40 Scheduling Order to Permit Filing of Amended Answer by Defendant James Michael Goodwin. (Attachments: # 1 Exhibit Amended Answer and Jury Demand of Defendant Michael Goodwin, # 2 Proposed Order (PDF Only) Order RE: Unopposed Motion to Amend Scheduling Order to Permit Filing of Amended Answer)(Palumbo, Gary) Modified on 10/27/2010 to create linkage (wjc,). (Entered: 10/26/2010)
10/27/2010	48	COURTROOM MINUTES - Minute Entry for proceedings held before Magistrate Judge Craig B. Shaffer: A Telephonic Status Conference was held on 10/27/2010. ORDERED: The Unopposed Motion to Amend Scheduling Order to Permit Filing of Amended Answer, doc # 47 is GRANTED. The Amended Answer and Jury Demand of Defendant Michael Goodwin, doc #[47-1] is ACCEPTED FOR FILING AS OF TODAY'S DATE. A Final Pretrial Conference is set for 7/20/2011 at 09:00 AM before Magistrate Judge Craig B. Shaffer. A Proposed Final Pretrial Order is due 7 days prior. A ten-day Jury Trial is to commence on 9/12/2011 at 08:30 AM before Magistrate Judge Craig B. Shaffer. By Magistrate Judge Craig B. Shaffer. (Court Reporter FTR - Linda Kahoe) (cbscd) (Entered: 10/27/2010)
10/27/2010	49	AMENDED ANSWER AND JURY DEMAND to 13 Amended Complaint by Defendant James Michael Goodwin. (wjc,) (Entered: 10/28/2010)

11/16/2010	50	STIPULATION <i>Regarding Extension of Time for Plaintiff to Respond to Defendant Breckenridge Outdoor Education's Interrogatories and Requests for Production to Plaintiff</i> by Plaintiff Kimberly N. Squires. (Gold, Gregory) (Entered: 11/16/2010)
11/18/2010	51	MINUTE ORDER re: 50 Stipulation Regarding Extension of Time for Plaintiff to Respond to Defendant Breckenridge Outdoor Education's Interrogatories and Requests for Production filed by Kimberly N. Squires is APPROVED by the court. By Magistrate Judge Craig B. Shaffer on 11/18/2010. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (cbslc1) (Entered: 11/18/2010)
12/03/2010	52	MOTION for Summary Judgment by Defendant Breckenridge Outdoor Education Center. (Attachments: # 1 Exhibit Exhibit A, # 2 Exhibit Exhibit B, # 3 Exhibit Exhibit C) (Allgaier, Joan) (Entered: 12/03/2010)
12/10/2010	53	MINUTE ORDER : the settlement conference scheduled for December 15, 2010, is VACATED. The use of the Court facility for the purpose of depositions earlier in the day on December 15, 2010, will not be necessary to be held here since the settlement conference has now been vacated. The parties will find another venue for the depositions that morning, by Magistrate Judge Boyd N. Boland on 12/10/10. (bnbcd,) (Entered: 12/10/2010)
12/21/2010	54	Unopposed MOTION for Extension of Time to File Response/Reply as to 52 MOTION for Summary Judgment by Plaintiff Kimberly N. Squires. (Attachments: # 1 Proposed Order (PDF Only) Proposed Order)(Parsley, Colleen) (Entered: 12/21/2010)
12/21/2010	55	ORDER granting 54 Plaintiff's Unopposed Motion for Extension of Time to File a Response to Defendant Breckenridge Outdoor Education Center's Motion for Summary Judgment. Plaintiff shall file her response to the Motion for Summary Judgment (doc. # 52) on or before Thursday, January 6, 2011. By Magistrate Judge Craig B. Shaffer on 12/21/2010.TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (cbslc1) (Entered: 12/21/2010)
01/06/2011	56	RESPONSE to 52 MOTION for Summary Judgment filed by Plaintiff Kimberly N. Squires. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, Part 1, # 3 Exhibit 2, Part 2, # 4 Exhibit 3 Part 1, # 5 Exhibit 3 Part 2, # 6 Exhibit 4)(Gold, Gregory) Modified on 1/7/2011 to delete duplicate text (wjc,). (Entered: 01/06/2011)
01/11/2011	57	NOTICE of Entry of Appearance by Deana R. Dagner on behalf of Breckenridge Outdoor Education Center (Dagner, Deana) (Entered: 01/11/2011)
01/14/2011	58	MOTION for Summary Judgment by Defendant Mountain Man, Inc.. (Attachments: # 1 Continuation of Main Document Memorandum Brief in Support of Motion for Summay Judgment, # 2 Exhibit Exhibit A, # 3 Exhibit Exhibit B, # 4 Affidavit Exhibit C (Affidavit), # 5 Exhibit Exhibit D, # 6 Exhibit Exhibit E)(Meinert, Timothy) (Entered: 01/14/2011)
01/21/2011	59	Unopposed MOTION for Extension of Time to File Response/Reply as to 52 MOTION for Summary Judgment by Defendant Breckenridge Outdoor Education Center. (Attachments: # 1 Proposed Order (PDF Only) Proposed Order)(Allgaier, Joan) (Entered: 01/21/2011)
01/21/2011	60	ORDER granting 59 Defendant Breckenridge Outdoor Education Center's Unopposed Motion for Extension of Time to Reply to Motion for Summary Judgment. BOEC shall file its Reply to the Motion for Summary Judgment on or before January 24, 2011. By Magistrate Judge Craig B. Shaffer on 01/21/2011.TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (cbslc1) (Entered: 01/21/2011)

01/24/2011	61	REPLY to Response to 52 MOTION for Summary Judgment filed by Defendant Breckenridge Outdoor Education Center. (Attachments: # 1 Exhibit D, # 2 Exhibit E) (Allgaier, Joan) (Entered: 01/24/2011)
01/25/2011	62	MINUTE ORDER: Motion Hearing on all pending motions set for Tuesday May 17, 2011 at 2:30 PM in Courtroom A 402 before Magistrate Judge Craig B. Shaffer. By Magistrate Judge Craig B. Shaffer on 01/25/2011. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (cbslc1) (Entered: 01/25/2011)
01/26/2011	63	Stipulated MOTION to Amend/Correct/Modify 40 Scheduling Order by Plaintiff Kimberly N. Squires. (Attachments: # 1 Proposed Order (PDF Only))(Gold, Gregory) (Entered: 01/26/2011)
01/27/2011	64	ORDER granting 63 "Stipulated Motion to Amend Scheduling Order." Plaintiff and Defendant BOEC are permitted to add standard of care expert witnesses in the area of knots. All Defendants shall designate all experts and rebuttal experts and provide opposing counsel and any pro se party with all information specified in Fed. R.Civ.P 26(a)(2) on or before February 14, 2011. By Magistrate Judge Craig B. Shaffer on 01/27/2011.TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (cbslc1) (Entered: 01/27/2011)
01/28/2011	65	MINUTE ORDER resetting the hearing on all pending motions pursuant to an unopposed telephonic request made by counsel for Defendant Breckenridge. ORDERED that the Motion(s) Hearing will be held on 5/25/2011 at 2:30 p.m., by Magistrate Judge Craig B. Shaffer on 1/28/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(cbssec) (Entered: 01/28/2011)
02/01/2011	66	MINUTE ORDER setting a Telephonic Discovery Hearing on 2/2/2011 at 8:30 a.m. <i>Counsel shall coordinate to create a conference call among themselves before contacting the court (303.844.2117) at the scheduled time</i> , by Magistrate Judge Craig B. Shaffer on 2/1/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(cbssec) (Entered: 02/01/2011)
02/02/2011	67	COURTROOM MINUTES/MINUTE ORDER for proceedings held before Magistrate Judge Craig B. Shaffer: A Telephonic Discovery Hearing was held on 2/2/2011. ORDERED: Mr. Gold shall email copies of the two expert reports, and the exchange of emails, to chambers today. A further Telephonic Discovery Hearing is set for 2/7/2011 at 08:00 AM before Magistrate Judge Craig B. Shaffer. (Counsel shall coordinate a conference call among themselves prior to contacting the court at 303.844.2117 at the scheduled time.) By Magistrate Judge Craig B. Shaffer. (FTR: Linda Kahoe) (cbscd) (Entered: 02/02/2011)
02/04/2011	68	RESPONSE to 58 MOTION for Summary Judgment filed by Plaintiff Kimberly N. Squires. (Attachments: # 1 Appendix 1, # 2 Appendix 2, # 3 Appendix 3, # 4 Appendix 4, # 5 Appendix 5, # 6 Appendix 6, # 7 Appendix 7)(Gold, Gregory) (Entered: 02/04/2011)
02/07/2011	69	COURTROOM MINUTES/MINUTE ORDER for proceedings held before Magistrate Judge Craig B. Shaffer: A Telephonic Discovery Hearing was held on 2/7/2011. (FTR: Linda Kahoe) (cbscd) (Entered: 02/07/2011)
02/16/2011	70	ORDER - Due to a conflict on the court's calendar, the court <i>sua sponte</i> , is vacating the Motion Hearing currently set for 5/25/2011 at 2:30 pm and is RESETTING it to 5/26/2011 at 02:30 PM before Magistrate Judge Craig B. Shaffer. By Magistrate Judge Craig B. Shaffer on 2/16/2011. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(cbscd) (Entered: 02/16/2011)
02/18/2011	71	REPLY to Response to 58 MOTION for Summary Judgment filed by Defendant Mountain Man, Inc.. (Attachments: # 1 Appendix Peter Axelson report, # 2 Appendix

		Tessier Tandemski brochure)(Meinert, Timothy) (Entered: 02/18/2011)
02/23/2011	72	MINUTE ORDER Setting Hearing on 58 MOTION for Summary Judgment, 52 MOTION for Summary Judgment : Motion Hearing set for 05/26/2011 is vacated and reset for 5/23/2011 at 02:30 PM in Courtroom A 402 before Magistrate Judge Craig B. Shaffer, by Magistrate Judge Craig B. Shaffer on 02/23/2011. (wjc,) (Entered: 02/23/2011)
03/07/2011	73	NOTICE of Entry of Appearance by Richard Waldron Bryans, Jr on behalf of Kimberly N. Squires (Bryans, Richard) (Entered: 03/07/2011)
03/16/2011	74	Unopposed MOTION to Amend/Correct/Modify 40 Scheduling Order by Plaintiff Kimberly N. Squires. (Attachments: # 1 Proposed Order (PDF Only))(Parsley, Colleen) (Entered: 03/16/2011)
03/16/2011	75	ORDER granting 74 Unopposed Motion to Amend Scheduling Order. The deadline for completion of discovery is extended to Monday, May 2, 2011 for the sole purpose of completing all depositions. By Magistrate Judge Craig B. Shaffer on 03/16/2011.TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (cbslc1) (Entered: 03/16/2011)
04/18/2011	76	NOTICE re 52 MOTION for Summary Judgment <i>and Supplemental Authority</i> by Defendant Breckenridge Outdoor Education Center (Allgaier, Joan) (Entered: 04/18/2011)
04/28/2011	77	MINUTE ORDER. Telephonic Discovery Hearing set for 5/5/2011 at 03:30 PM before Magistrate Judge Craig B. Shaffer, by Magistrate Judge Craig B. Shaffer on 4/28/11. (lsw,) (Entered: 04/28/2011)
05/05/2011	78	Supplemental Memorandum Brief in Support of 58 MOTION for Summary Judgment for on Plaintiff's Sixth, Seventh, Eighth and Ninth Claims for Relief, by Defendant Mountain Man, Inc.. (Attachments: # 1 Exhibit Exhibit F, G & H)(Meinert, Timothy) Modified on 5/6/2011 to edit text to clarify title of document and add linkage (wjc,). Modified on 5/6/2011 to add text word title to previous entry modification (wjc,). (Entered: 05/05/2011)
05/05/2011	80	COURTROOM MINUTES/MINUTE ORDER for proceedings held before Magistrate Judge Craig B. Shaffer: Telephonic Discovery Hearing held on 5/5/2011. (FTR: C. Coomes -- Courtroom A-402) (mehcd) (Entered: 05/06/2011)
05/06/2011	79	Docket Annotation re: 78 MOTION to Substitute PartySupplemental MOTION for Summary Judgment Memorandum Brief. Modified on 5/6/2011 to edit text to clarify title of document and add linkage. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED. (wjc,) (Entered: 05/06/2011)
05/12/2011	81	RESPONSE to 76 Notice (Other) of <i>Supplemental Authority Re: BOEC'S Motion for Summary Judgment</i> by Plaintiff Kimberly N. Squires. (Parsley, Colleen) (Entered: 05/12/2011)
05/23/2011	82	COURTROOM MINUTES/MINUTE ORDER for proceedings held before Magistrate Judge Craig B. Shaffer: A Motion Hearing was held on 5/23/2011. ORDERED: Plaintiff is allowed to brief the limited question of misrepresentation on or before 5/30/2011. Daubert or Rule 702 motions due 6/6/2011. Plaintiff may file a motion for leave to amend her prayer for relief no later than 6/6/2011. Mountain Man's Motion for Summary Judgment, doc # 58 is taken under advisement. The court will await further briefing on BOEC's Motion for Summary Judgment, doc # 52 . By Magistrate Judge Craig B. Shaffer. (FTR: Linda Kahoe) (cbscd) (Entered: 05/23/2011)
05/26/2011	83	RESPONSE to 78 MOTION to Substitute PartySupplemental 58 MOTION for Summary Judgment Memorandum Brief filed by Plaintiff Kimberly N. Squires. (Attachments: # 1

		Appendix)(Parsley, Colleen) Modified on 5/27/2011 to create linkage (wjc,). (Entered: 05/26/2011)
05/30/2011	84	RESPONSE to 52 MOTION for Summary Judgment <i>and Memorandum Brief on Misrepresentation</i> filed by Plaintiff Kimberly N. Squires. (Attachments: # 1 Exhibit, # 2 Exhibit, # 3 Exhibit, # 4 Exhibit, # 5 Exhibit, # 6 Exhibit, # 7 Exhibit)(Gold, Gregory) (Entered: 05/31/2011)
05/31/2011	85	MOTION to Strike 83 Response to Motion <i>for Summary Judgment</i> by Defendant Mountain Man, Inc.. (Meinert, Timothy) (Entered: 05/31/2011)
06/06/2011	86	MOTION for (Order) Determination of Question of Law RE Affirmative Defense Jury Instruction by Defendant James Michael Goodwin. (Attachments: # 1 Exhibit Exhibit 1, # 2 Proposed Order (PDF Only) Proposed Order)(Palumbo, Gary) Modified on 6/7/2011 to edit text to clarify title of document (wjc,). (Entered: 06/06/2011)
06/06/2011	87	MOTION to Exclude <i>Plaintiff's Expert Testimony Pursuant to F.R.E. 702</i> by Defendant Mountain Man, Inc.. (Meinert, Timothy) (Entered: 06/06/2011)
06/06/2011	88	MOTION to Strike Plaintiff's Experts Bill Hawkins and Stanley Gale under Fed.R.Civ.P. 702 Daubert by Defendant Breckenridge Outdoor Education Center. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit D, # 4 Exhibit E, # 5 Exhibit F, # 6 Exhibit G, # 7 Exhibit H, # 8 Exhibit I, # 9 Exhibit J, # 10 Exhibit K, # 11 Exhibit L, # 12 Exhibit M, # 13 Exhibit N, # 14 Exhibit O, # 15 Exhibit P, # 16 Exhibit Q)(Allgaier, Joan) Modified on 6/7/2011 to delete duplicate text (wjc,). (Entered: 06/06/2011)
06/06/2011	89	BRIEF re 61 Reply to Response to Motion Surreply Brief re Misrepresentation in Support of 52 BOEC's Motion for Summary Judgment by Defendant Breckenridge Outdoor Education Center. (Attachments: # 1 Exhibit G, # 2 Exhibit H, # 3 Exhibit F, # 4 Exhibit I, # 5 Exhibit J, # 6 Exhibit K, # 7 Exhibit L)(Allgaier, Joan) Modified on 6/7/2011 to create linkage (wjc,). (Entered: 06/06/2011)
06/06/2011	90	MOTION to Amend/Correct/Modify 13 Complaint To Add Claims For Exemplary Damages and Outrageous Conduct Against Defendant Breckenridge Outdoor Education Center by Plaintiff Kimberly N. Squires. (Attachments: # 1 Exhibit, # 2 Exhibit, # 3 Exhibit, # 4 Exhibit, # 5 Exhibit, # 6 Exhibit, # 7 Exhibit, # 8 Exhibit, # 9 Exhibit, # 10 Exhibit, # 11 Exhibit, # 12 Exhibit)(Gold, Gregory) Modified on 6/7/2011 to create linkage (wjc,). (Entered: 06/06/2011)
06/06/2011	91	Exhibit C (consisting of one DVD+R) in Support of 88 MOTION to Strike and/or Limit Plaintiff's Experts Bill Hawkins and Stanley Gale under Fed.R.Civ.P. 702 Daubert by Defendant Breckenridge Outdoor Education Center. TEXT ONLY ENTRY - Material placed in oversized area B-1-8 of the Clerk's Office.. (wjc,) (Entered: 06/07/2011)
06/07/2011	92	Docket Annotation re: 86 MOTION to SuppressFirst MOTION for Order to Determination of Question of Law RE Affirmative Defense Jury Instruction. Modified on 6/7/2011 to edit text to clarify title of document. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED. (wjc,) (Entered: 06/07/2011)
06/15/2011	93	MINUTE ORDER converting the final pretrial conference to a hearing on all pending motions. ORDERED that a Motions Hearing will take place on 7/20/2011 at 8:00 a.m. in Courtroom A 402, by Magistrate Judge Craig B. Shaffer on 6/15/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(cbssec) (Entered: 06/15/2011)
06/15/2011	94	MINUTE ORDER resetting the Final Pretrial Conference for 8/8/2011 at 8:30 a.m. in Courtroom A 402. Parties shall submit a proposed final pretrial order no later than 7 days prior to the conference, by Magistrate Judge Craig B. Shaffer on 6/15/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(cbssec) (Entered: 06/15/2011)

06/21/2011	95	RESPONSE to 85 MOTION to Strike 83 Response to Motion for <i>Summary Judgment</i> filed by Plaintiff Kimberly N. Squires. (Parsley, Colleen) (Entered: 06/21/2011)
06/27/2011	96	RESPONSE to 86 MOTION to SuppressFirst MOTION for Order to <i>Determination of Question of Law RE Affirmative Defense Jury Instruction</i> filed by Defendant Breckenridge Outdoor Education Center. (Allgaier, Joan) (Entered: 06/27/2011)
06/27/2011	97	RESPONSE to 88 MOTION to Strike <i>Plaintiff's Experts Bill Hawkins and Stanley Gale under Fed.R.Civ.P. 702 Daubert</i> filed by Plaintiff Kimberly N. Squires. (Attachments: # 1 Exhibit, # 2 Exhibit, # 3 Exhibit, # 4 Exhibit, # 5 Exhibit, # 6 Exhibit, # 7 Exhibit, # 8 Exhibit, # 9 Exhibit, # 10 Exhibit, # 11 Exhibit, # 12 Exhibit, # 13 Exhibit, # 14 Exhibit, # 15 Exhibit)(Gold, Gregory) (Entered: 06/27/2011)
06/27/2011	98	RESPONSE to 86 MOTION to SuppressFirst MOTION for Order to <i>Determination of Question of Law RE Affirmative Defense Jury Instruction</i> filed by Plaintiff Kimberly N. Squires. (Parsley, Colleen) (Entered: 06/27/2011)
06/27/2011	99	Unopposed MOTION for Extension of Time to File Response/Reply as to 87 MOTION to Exclude <i>Plaintiff's Expert Testimony Pursuant to F.R.E. 702</i> by Plaintiff Kimberly N. Squires. (Attachments: # 1 Proposed Order (PDF Only))(Parsley, Colleen) (Entered: 06/27/2011)
06/27/2011	100	RESPONSE to 90 MOTION to Amend/Correct/Modify <i>Complaint To Add Claims For Exemplary Damages and Outrageous Conduct Against Defendant Breckenridge Outdoor Education Center</i> filed by Defendant Breckenridge Outdoor Education Center. (Attachments: # 1 Exhibit Exhibit A, # 2 Exhibit Exhibit B, # 3 Exhibit Exhibit C, # 4 Exhibit Exhibit D, # 5 Exhibit Exhibit E, # 6 Exhibit Exhibit F, # 7 Exhibit Exhibit G) (Allgaier, Joan) (Entered: 06/27/2011)
06/28/2011	101	ORDER granting 99 Plaintiff's Unopposed Motion for Extension of Time to Respond to Defendant Mountain Man, Inc.'s Motion to Exclude Plaintiff's Expert Testimony Pursuant to F.R.E. 702. Plaintiff shall file her response to Defendant Mountain Man, Inc.'s Motion to Exclude Plaintiff's Expert Testimony Pursuant to F.R.E. 702 (Doc. # 87) on or before Thursday, June 30, 2011. By Magistrate Judge Craig B. Shaffer on 06/28/2011.TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (cbslc1) Modified on 6/29/2011 to create linkage (wjc,). (Entered: 06/28/2011)
06/30/2011	102	RESPONSE to 87 MOTION to Exclude <i>Plaintiff's Expert Testimony Pursuant to F.R.E. 702</i> filed by Plaintiff Kimberly N. Squires. (Attachments: # 1 Exhibit, # 2 Exhibit, # 3 Exhibit, # 4 Exhibit, # 5 Appendix)(Parsley, Colleen) (Entered: 06/30/2011)
07/05/2011	103	REPLY to Response to 86 MOTION to SuppressFirst MOTION for Order to <i>Determination of Question of Law RE Affirmative Defense Jury Instruction</i> filed by Defendant James Michael Goodwin. (Palumbo, Gary) (Entered: 07/05/2011)
07/11/2011	104	REPLY to Response to 90 MOTION to Amend/Correct/Modify <i>Complaint To Add Claims For Exemplary Damages and Outrageous Conduct Against Defendant Breckenridge Outdoor Education Center</i> filed by Plaintiff Kimberly N. Squires. (Attachments: # 1 Exhibit, # 2 Exhibit, # 3 Exhibit)(Gold, Gregory) (Entered: 07/11/2011)
07/11/2011	105	REPLY to Response to 88 MOTION to Strike <i>Plaintiff's Experts Bill Hawkins and Stanley Gale under Fed.R.Civ.P. 702 Daubert</i> filed by Defendant Breckenridge Outdoor Education Center. (Attachments: # 1 Exhibit R, # 2 Exhibit S)(Allgaier, Joan) (Entered: 07/11/2011)
07/15/2011	106	MOTION to Strike <i>Untimely Opinions by Plaintiff's Experts Bil Hawkins and Stanley Gale</i> by Defendant Breckenridge Outdoor Education Center. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E, # 6 Exhibit F, # 7 Exhibit G, #

		8 Exhibit H, # 9 Exhibit I, # 10 Exhibit J, # 11 Exhibit K, # 12 Exhibit L)(Allgaier, Joan) (Entered: 07/15/2011)
07/20/2011	107	Minute Entry for proceedings held before Magistrate Judge Craig B. Shaffer: Motion Hearing held on 7/20/2011 taking under advisement 52 Motion for Summary Judgment; taking under advisement 58 Motion for Summary Judgment; denying 85 Motion to Strike; denying without prejudice 86 Motion for Order; vacating 8/8/2011 Final Pretrial Conference; vacating 9/12/2011 Jury Trial. (FTR: Linda Kahoe) (cbscd) (Entered: 07/20/2011)
08/05/2011	108	RESPONSE to 106 MOTION to Strike <i>Untimely Opinions by Plaintiff's Experts Bil Hawkins and Stanley Gale</i> filed by Plaintiff Kimberly N. Squires. (Attachments: # 1 Exhibit)(Parsley, Colleen) (Entered: 08/05/2011)
08/15/2011	109	MINUTE ORDER confirming that a ten day Jury Trial has been set to start on 3/26/2012 at 8:30 a.m. in Courtroom A 402, before Magistrate Judge Craig B. Shaffer. A Final Pretrial Conference will be held on 2/13/2012 at 10:00 a.m. before Magistrate Judge Craig B. Shaffer. Parties shall submit a proposed final pretrial order no later than seven days prior to the conference, by Magistrate Judge Craig B. Shaffer on 8/15/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(cbssec) (Entered: 08/15/2011)
08/19/2011	110	REPLY to Response to 106 MOTION to Strike <i>Untimely Opinions by Plaintiff's Experts Bil Hawkins and Stanley Gale</i> filed by Defendant Breckenridge Outdoor Education Center. (Attachments: # 1 Exhibit M)(Grund, John) (Entered: 08/19/2011)
09/07/2011	111	MINUTE ORDER re: 106 Defendant BOECS Motion to Strike Untimely Opinions by Plaintiff's Experts, Hawkins and Gale. A Motion Hearing is set for September 19, 2011 at 9:00 a.m. in Courtroom A 402 before Magistrate Judge Craig B. Shaffer. By Magistrate Judge Craig B. Shaffer on 09/07/2011. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (cbslc1) (Entered: 09/07/2011)
09/08/2011	112	MOTION for Leave to Appear <i>at Motions Hearing by Telephone</i> by Defendant Mountain Man, Inc.. (Meinert, Timothy) (Entered: 09/08/2011)
09/08/2011	113	ORDER granting 112 Motion to Permit Counsel for Defendant Mountain Man, Inc. to Appear by Telephone at the Motion Hearing set on September 19, 2011. Counsel for Defendant Mountain Man, Inc. shall arrange for his participation via telephone and shall call (303) 844-2117 at the scheduled time. Counsel for Plaintiff and BOEC are required to appear at the September 19, 2011 hearing in person. By Magistrate Judge Craig B. Shaffer on 09/08/2011. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (cbslc1) (Entered: 09/08/2011)
09/19/2011	114	MINUTE ENTRY for proceedings held before Magistrate Judge Craig B. Shaffer: Motion Hearing held on 9/19/2011. Granting in part and denying in part 106 Motion to Strike. Parties shall file the CV of Stanley Gale and Exhibit A by close of business on 9/19/11. If the parties would like to set a Motions Hearing, they shall contact chambers by close of business on 9/19/11. (FTR: Emily Seamon) (eseam) (Entered: 09/20/2011)
09/22/2011	115	ORDER setting hearing on 87 MOTION to Exclude Plaintiff's Expert Testimony Pursuant to F.R.E. 702 and 88 MOTION to Strike Plaintiff's Experts Bill Hawkins and Stanley Gale under Fed.R.Civ.P. 702 Daubert. ORDERED that a Motions Hearing will take place on 10/20/2011 at 1:30 p.m. before Magistrate Judge Craig B. Shaffer, by Magistrate Judge Craig B. Shaffer on 9/22/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(cbssec) (Entered: 09/22/2011)
10/20/2011	116	MINUTE ENTRY for Telephonic Motion Hearing held before Magistrate Judge Craig B. Shaffer on 10/20/2011. Evidence and testimony given. The court will issue a written order regarding Defendant Mountain Man, Inc.'s Motion to Exclude Plaintiff's Expert

		Testimony Pursuant to F.R.E. 702 Doc.# 87 and BOEC's Motion to Strike and/or Limit Plaintiff's Experts Bil Hawkins and Stanley Gale Under FED.CIV.P. 702 and Daubert. Doc.# 88 . (FTR: Laura Galera) (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Exhibit 5, # 6 Exhibit 6) (lag) Modified on 10/24/2011 to add text telephonic (wjc,). (Entered: 10/21/2011)
10/20/2011	118	AMENDED MINUTE ENTRY re 116 Motion Hearing held before Magistrate Judge Craig B. Shaffer. Minutes amended to omit the word, "telephonic." (FTR: Laura Galera) (lag,) (Entered: 10/24/2011)
10/24/2011	117	Docket Annotation re: 116 Motion Hearing. Modified on 10/24/2011 to add text telephonic. Text Only Entry. (wjc,) (Entered: 10/24/2011)
11/07/2011	119	ORDER granting 87 Defendant Mountain Man Inc.'s Motion to Exclude Plaintiff's Expert Testimony; granting 58 Defendant Mountain Man Inc.'s Motion for Summary Judgment; denying 88 Defendant Breckenridge Outdoor Education Center's Motion to Strike Plaintiff's Experts. Defendant Mountain Man, Inc. shall be terminated as a party at this time and judgment on the Second Amended Complaint (Doc. # 13) shall be entered in favor of Defendant Mountain Man at the conclusion of the entire case. By Magistrate Judge Craig B. Shaffer on 11/07/2011. (cbslc1) (Entered: 11/07/2011)
11/08/2011	120	ORDER granting in part and denying in part 52 Defendant Breckenridge Outdoor Education Center's Motion for Summary Judgment. The Fifth Claim for Relief in the Second Amended Complaint (Doc. # 13) shall proceed against Defendant Breckenridge Outdoor Education Center only on the alleged willful and wanton, reckless, or grossly negligent acts or omissions. A Telephonic Status Conference is set on Thursday December 8, 2011 at 8:30 AM in Courtroom A 402 before Magistrate Judge Craig B. Shaffer. Counsel for the parties shall create a conference call and then telephone the court at 303-844-2117 at the scheduled time. By Magistrate Judge Craig B. Shaffer on 11/08/2011. (cbslc1) (Entered: 11/08/2011)
11/11/2011	121	TRANSCRIPT of Motions Hearing held on 10/20/2011 before Magistrate Judge Shaffer. Pages: 1-169. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 2/13/2012. (Avery Woods Reporting,) (Entered: 11/11/2011)
11/16/2011	122	WITHDRAWN - MOTION for Sanctions by Defendant Mountain Man, Inc. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E, # 6 Exhibit F, # 7 Exhibit G, # 8 Exhibit H, # 9 Exhibit I, # 10 Exhibit J, # 11 Exhibit K, # 12 Exhibit L, # 13 Exhibit M, # 14 Exhibit N, # 15 Exhibit O)(Meinert, Timothy) Modified on 11/17/2011 to delete duplicate text (wjc,). Modified on 1/17/2012 to add text Withdrawn pursuant to Order dated 01/17/2012 (wjc,). (Entered: 11/16/2011)
11/16/2011	123	MINUTE ORDER re: 122 MOTION for Sanctions filed by Defendant Mountain Man, Inc. Plaintiff need not file a response to the Motion until after the Telephonic Status Conference set on Thursday December 8, 2011 at 8:30 AM. A response date will be set at the Telephonic Status Conference, as necessary. By Magistrate Judge Craig B. Shaffer on 11/16/2011. Text Only Entry (cbslc1) (Entered: 11/16/2011)

11/23/2011	124	NOTICE of Entry of Appearance by Theodore Thomas Metier on behalf of Kimberly N. Squires (Metier, Theodore) (Entered: 11/23/2011)
12/01/2011	125	MINUTE ORDER resetting hearing pursuant to a telephonic request made by counsel. ORDERED that the Telephonic Status Conference is reset to 12/19/2011 at 3:00 p.m. before Magistrate Judge Craig B. Shaffer. <i>Counsel shall coordinate to create a conference call among themselves before contacting the court (303.844.2117) at the scheduled time</i> , by Magistrate Judge Craig B. Shaffer on 12/1/11. Text Only Entry (cbssec) (Entered: 12/01/2011)
12/19/2011	126	MINUTE ENTRY for proceedings held before Magistrate Judge Craig B. Shaffer: Telephonic Status Conference held on 12/19/2011. 90 Motion to Amend/Correct/Modify # 13 Complaint To Add Claims For Exemplary Damages and Outrageous Conduct Against Defendant Breckenridge Outdoor Education Center is DENIED to the extent it seeks to add claims for outrageous conduct as to defendant Breckenridge Outdoor Education Center and is GRANTED to the extent that it adds the request for exemplary damages. The court will issue a written order to this effect. Mr. Meinert shall advise the court and Ms. Squires of intentions regarding Motion for Sanctions by Defendant Mountain Man, Inc. on or before 1/13/2012. If the motion is to be amended or withdrawn it shall be done on or before 1/13/2012. (FTR: Laura Galera and Robin Mason) (cbscd) Modified on 12/21/2011 to add text telephonic and create linkage (wjc,). (Entered: 12/20/2011)
12/19/2011	127	MINUTE ENTRY for proceedings held before Magistrate Judge Craig B. Shaffer: Amended re 126 Minute Entry to reflect that the Status Conference was a TELEPHONIC Status Conference. (FTR: Laura Galera and Robin Mason) (cbscd) (Entered: 12/20/2011)
01/09/2012	128	MEMORANDUM OPINION on Plaintiff's Motion for Leave to Amend (Doc. # 90). By Magistrate Judge Craig B. Shaffer on 01/09/2012. (cbslc1) Modified on 1/10/2012 to create linkage (wjc,). (Entered: 01/09/2012)
01/13/2012	129	NOTICE of Voluntary Dismissal of Case by Plaintiff Kimberly N. Squires (Parsley, Colleen) (Entered: 01/13/2012)
01/16/2012	130	MOTION for Determination of Question of Law Re: Affirmative-Defense Jury Instruction by Defendant James Michael Goodwin. (Attachments: # 1 Exhibit 1, # 2 Proposed Order (PDF Only))(Palumbo, Gary) Modified on 1/17/2012 to edit text to clarify title of document and delete duplicate text (wjc,). (Entered: 01/16/2012)
01/17/2012	131	ORDER ON STIPULATED NOTICE OF DISMISSAL WITH PREJUDICE. The parties' Stipulation is approved and Plaintiffs claims against Defendant Mountain Man, Inc. are dismissed with prejudice pursuant to Fed. R. Civ. P. 41(a)(1)(A)(ii), each party to bear her or its own attorney fees and costs. Defendant Mountain Man, Inc.'s 122 Motion for Sanctions Pursuant to F.R.C.P. 11(c) is WITHDRAWN, by Magistrate Judge Craig B. Shaffer on 01/17/2012.(wjc,) (Entered: 01/17/2012)
01/18/2012	132	MOTION for Reconsideration re 128 Memorandum & Opinion by Defendant Breckenridge Outdoor Education Center. (Attachments: # 1 Exhibit A, # 2 Exhibit B) (Allgaier, Joan) (Entered: 01/18/2012)
02/06/2012	133	RESPONSE to 130 Monthly MOTION to Suppress <i>Motion for Determination of Question of La RE Affirmative Defense Jury Instruction</i> filed by Defendant Breckenridge Outdoor Education Center. (Allgaier, Joan) (Entered: 02/06/2012)
02/06/2012	134	RESPONSE to 130 Monthly MOTION to Suppress <i>Motion for Determination of Question of La RE Affirmative Defense Jury Instruction</i> filed by Plaintiff Kimberly N. Squires. (Parsley, Colleen) (Entered: 02/06/2012)

02/06/2012	135	Proposed Pretrial Order by Defendant Breckenridge Outdoor Education Center. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Exhibit 5, # 6 Exhibit 6)(Allgaier, Joan) (Entered: 02/06/2012)
02/08/2012	136	RESPONSE to 132 MOTION for Reconsideration re 128 Memorandum & Opinion filed by Plaintiff Kimberly N. Squires. (Parsley, Colleen) (Entered: 02/08/2012)
02/10/2012	137	Exhibit List by Defendant James Michael Goodwin. (Palumbo, Gary) (Entered: 02/10/2012)
02/10/2012	138	Witness List by Defendant James Michael Goodwin. (Palumbo, Gary) (Entered: 02/10/2012)
02/13/2012	139	MINUTE ENTRY for proceedings held before Magistrate Judge Craig B. Shaffer: Final Pretrial Conference held on 2/13/2012. The court DENIES without prejudice 130 Motion to Continue. The court DENIES as MOOT 132 Motion for Reconsideration. The parties shall revise their Witness Lists and Exhibits Lists and file with the court no later than 2/20/2012. Any parties who would like to file a Motion in Limine must file one no later than 2/29/2012. To the extent that a party files a Motion in Limine, a written response shall be filed no later than 3/14/2012 (there will be no replies accepted). A proposed list of voir dire questions shall be submitted by 3/14/2012. All proposed jury instructions shall be filed no later than 3/14/2012. A Motions hearing is set for 3/20/2012 01:30 PM in Courtroom A 402 before Magistrate Judge Craig B. Shaffer. All counsel who will be participating in the trial must be present at this hearing. The court will need to know, no later than 3/20/2012, if the parties will be using jury notebooks or technology. The court will block out the entire afternoon of 3/23/2012 to allow the parties access to the courtroom to set up for the trial. (FTR: Robin Mason) (cbscd,) (Entered: 02/14/2012)
02/20/2012	140	Exhibit List by Defendant Breckenridge Outdoor Education Center. (Allgaier, Joan) (Entered: 02/20/2012)
02/20/2012	141	Witness List by Defendant Breckenridge Outdoor Education Center. (Allgaier, Joan) (Entered: 02/20/2012)
02/20/2012	142	Exhibit List by Plaintiff Kimberly N. Squires. (Parsley, Colleen) (Entered: 02/20/2012)
02/20/2012	143	Witness List by Plaintiff Kimberly N. Squires. (Parsley, Colleen) (Entered: 02/20/2012)
02/21/2012	144	REPLY to Response to 130 Monthly MOTION to Suppress <i>Motion for Determination of Question of La RE Affirmative Defense Jury Insturction</i> filed by Defendant James Michael Goodwin. (Palumbo, Gary) (Entered: 02/21/2012)
02/29/2012	145	MOTION in Limine to Exclude Evidence of Plaintiff's Claim of Alleged Wrongdoing by BOEC Volunteer James Trisler by Defendant Breckenridge Outdoor Education Center. (Attachments: # 1 Exhibit A, # 2 Exhibit B)(Grund, John) (Entered: 02/29/2012)
02/29/2012	146	MOTION in Limine to Strike Late and Previously Undisclosed Exhibits and Records by Defendant Breckenridge Outdoor Education Center. (Attachments: # 1 Envelope A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E, # 6 Exhibit F, # 7 Exhibit G, # 8 Exhibit H, # 9 Exhibit I, # 10 Exhibit J)(Grund, John) (Entered: 02/29/2012)
02/29/2012	147	MOTION in Limine to Limit Testimony of Plaintiff's Health-Care Providers by Defendant Breckenridge Outdoor Education Center. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C)(Dagner, Deana) (Entered: 02/29/2012)
02/29/2012	148	MOTION in Limine to Limit Evidence re Other Ski Accidents by Defendant Breckenridge Outdoor Education Center. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E)(Grund, John) (Entered: 02/29/2012)

02/29/2012	<u>149</u>	MOTION in Limine <i>RE: Goodwin's Opinions Concerning Making a "Mistake" or Being "Responsible" for the Accident</i> by Defendant James Michael Goodwin. (Attachments: # <u>1</u> Exhibit Exhibit 1)(Palumbo, Gary) (Entered: 02/29/2012)
02/29/2012	<u>150</u>	MOTION in Limine <i>RE: Goodwin's Alleged Violation of the Colorado Ski Safety Act and Other Alleged Codes</i> by Defendant James Michael Goodwin. (Attachments: # <u>1</u> Exhibit Exhibits 1, 2, 3, 4)(Palumbo, Gary) (Entered: 02/29/2012)
02/29/2012	<u>151</u>	Unopposed MOTION in Limine <i>to Exclude Stanley Gale's Settlement Video</i> by Defendant Breckenridge Outdoor Education Center. (Attachments: # <u>1</u> Exhibit A)(Grund, John) (Entered: 02/29/2012)
02/29/2012	<u>152</u>	MOTION in Limine <i>Re Facts Concerning Defendant Goodwin</i> by Defendant Breckenridge Outdoor Education Center. (Grund, John) (Entered: 02/29/2012)
02/29/2012	<u>153</u>	MOTION in Limine <i>Re Insurance Coverage</i> by Defendant Breckenridge Outdoor Education Center. (Grund, John) (Entered: 02/29/2012)
02/29/2012	<u>154</u>	MOTION in Limine <i>to Preclude Expert Testimony Re Whether BOEC was Reckless</i> by Defendant Breckenridge Outdoor Education Center. (Attachments: # <u>1</u> Exhibit A, # <u>2</u> Exhibit B)(Grund, John) (Entered: 02/29/2012)
02/29/2012	<u>155</u>	MOTION in Limine <i>to Limit Testimony of Plaintiff's Expert Stanley Gale</i> by Defendant Breckenridge Outdoor Education Center. (Attachments: # <u>1</u> Exhibit A)(Grund, John) (Entered: 02/29/2012)
02/29/2012	<u>156</u>	MOTION in Limine <i>to Exclude Evidence of Whether BOEC was Accredited by the Association for Experiential Education</i> by Defendant Breckenridge Outdoor Education Center. (Grund, John) (Entered: 02/29/2012)
02/29/2012	<u>157</u>	MOTION in Limine <i>to Exclude Evidence of Defectiveness or Insufficiency of Bi-Ski</i> by Defendant Breckenridge Outdoor Education Center. (Grund, John) (Entered: 02/29/2012)
02/29/2012	<u>158</u>	MOTION in Limine <i>to Limit Testimony of Plaintiff's Expert Bil Hawkins</i> by Defendant Breckenridge Outdoor Education Center. (Attachments: # <u>1</u> Exhibit A, # <u>2</u> Exhibit B, # <u>3</u> Exhibit C, # <u>4</u> Exhibit D, # <u>5</u> Exhibit E)(Grund, John) (Entered: 02/29/2012)
02/29/2012	<u>159</u>	MOTION in Limine <i>re Scope of Expert Testimony</i> by Defendant Breckenridge Outdoor Education Center. (Grund, John) (Entered: 02/29/2012)
02/29/2012	<u>160</u>	MOTION in Limine <i>to Exclude Evidence of Liability Release</i> by Defendant Breckenridge Outdoor Education Center. (Grund, John) (Entered: 02/29/2012)
02/29/2012	<u>161</u>	MOTION in Limine <i>Re: BOEC's Nonprofit Status</i> by Plaintiff Kimberly N. Squires. (Gold, Gregory) (Entered: 02/29/2012)
02/29/2012	<u>162</u>	MOTION in Limine <i>Re: Collateral Source</i> by Plaintiff Kimberly N. Squires. (Gold, Gregory) (Entered: 02/29/2012)
02/29/2012	<u>163</u>	TRIAL BRIEF <i>and Motion Re: Highest Duty of Care</i> by Plaintiff Kimberly N. Squires. (Gold, Gregory) (Entered: 02/29/2012)
03/01/2012	<u>164</u>	NOTICE <i>Trial Subpoena David Anderson, MD</i> by Plaintiff Kimberly N. Squires (Metier, Theodore) (Entered: 03/01/2012)
03/01/2012	<u>165</u>	NOTICE <i>Trial Subpoena Jane Emerson, MD</i> by Plaintiff Kimberly N. Squires (Metier, Theodore) (Entered: 03/01/2012)
03/01/2012	<u>166</u>	NOTICE <i>Trial Subpoena Stanley Gale</i> by Plaintiff Kimberly N. Squires (Metier, Theodore) (Entered: 03/01/2012)

03/01/2012	167	NOTICE <i>Trial Subpoena Bil Hawkins</i> by Plaintiff Kimberly N. Squires (Metier, Theodore) (Entered: 03/01/2012)
03/01/2012	168	NOTICE <i>Trial Subpoena Jeffrey Opp</i> by Plaintiff Kimberly N. Squires (Metier, Theodore) (Entered: 03/01/2012)
03/01/2012	169	NOTICE <i>Trial Subpoena Robert Rinaldi, MD</i> by Plaintiff Kimberly N. Squires (Metier, Theodore) (Entered: 03/01/2012)
03/01/2012	170	NOTICE <i>Trial Subpoena John Schwappach, MD</i> by Plaintiff Kimberly N. Squires (Metier, Theodore) (Entered: 03/01/2012)
03/01/2012	171	NOTICE <i>Trial Subpoena Renee Stucky, PhD</i> by Plaintiff Kimberly N. Squires (Metier, Theodore) (Entered: 03/01/2012)
03/01/2012	172	NOTICE <i>Trial Subpoena Tracy Wingate</i> by Plaintiff Kimberly N. Squires (Metier, Theodore) (Entered: 03/01/2012)
03/01/2012	173	NOTICE <i>Trial Subpoena Eugene Evra, MD</i> by Plaintiff Kimberly N. Squires (Metier, Theodore) (Entered: 03/01/2012)
03/07/2012	174	NOTICE of Subpoena to Testify at Trial to Jennifer Phillips by Defendant Breckenridge Outdoor Education Center (Allgaier, Joan) (Entered: 03/07/2012)
03/08/2012	175	NOTICE of Trial Procedures Memorandum, attached here. By Magistrate Judge Shaffer on March 8, 2012. Any questions may be raised at the Motions Hearing set on March 20, 2012. (cbslc1) (Entered: 03/08/2012)
03/08/2012	176	NOTICE of court's stock jury instructions, by Magistrate Judge Shaffer on March 8, 2012. Main Document is court's stock introductory jury instruction. Questions regarding these stock instructions may be raised at the Motions Hearing set on March 20, 2012. (Attachments: # 1 court's stock expert witness jury instruction, # 2 court's stock concluding jury instruction) (cbslc1) (Entered: 03/08/2012)
03/12/2012	177	NOTICE of Supplemental Authorities re: 160 MOTION in Limine to Exclude Evidence of Liability Release by Defendant Breckenridge Outdoor Education Center (Allgaier, Joan) (Entered: 03/12/2012)
03/13/2012	178	RESPONSE to 145 MOTION in Limine to Exclude Evidence of Plaintiff's Claim of Alleged Wrongdoing by BOEC Volunteer James Trisler filed by Defendant James Michael Goodwin. (Attachments: # 1 Exhibit Exhibit A, # 2 Exhibit Exhibit B, # 3 Exhibit Exhibit C, # 4 Exhibit Exhibit D)(Palumbo, Gary) (Entered: 03/13/2012)
03/13/2012	179	RESPONSE to 152 MOTION in Limine Re Facts Concerning Defendant Goodwin filed by Defendant James Michael Goodwin. (Palumbo, Gary) (Entered: 03/13/2012)
03/13/2012	180	NOTICE re 174 Notice (Other) Waiver and Acceptance of Service by Defendant Breckenridge Outdoor Education Center (Allgaier, Joan) (Entered: 03/13/2012)
03/13/2012	181	SUPPLEMENT/AMENDMENT to 146 MOTION in Limine to Strike Late and Previously Undisclosed Exhibits and Records by Defendant Breckenridge Outdoor Education Center. (Attachments: # 1 Exhibit K, # 2 Exhibit L, # 3 Exhibit M)(Allgaier, Joan) (Entered: 03/13/2012)
03/14/2012	182	TRIAL BRIEF RE: Kimberly Squires as a Skier Under the Ski Safty Act by Defendant James Michael Goodwin. (Attachments: # 1 Exhibit)(Palumbo, Gary) (Entered: 03/14/2012)
03/14/2012	183	TRIAL BRIEF Regarding Treatment of Compative Fault on the Verdict Form by Defendant James Michael Goodwin. (Attachments: # 1 Exhibit Exhibit A, # 2 Exhibit

		Exhibit B, # 3 Exhibit Exhibit C, # 4 Exhibit Exhibit D)(Palumbo, Gary) (Entered: 03/14/2012)
03/14/2012	184	Proposed Voir Dire <i>Questions</i> by Defendant James Michael Goodwin. (Attachments: # 1 Exhibit Voir Dire Questions)(Palumbo, Gary) (Entered: 03/14/2012)
03/14/2012	185	NOTICE of Subpoena to Testify at Trial to Detective Kris Brady by Defendant James Michael Goodwin (Palumbo, Gary) (Entered: 03/14/2012)
03/14/2012	186	RESPONSE to 150 MOTION in Limine RE: <i>Goodwin's Alleged Violation of the Colorado Ski Safety Act and Other Alleged Codes</i> filed by Defendant Breckenridge Outdoor Education Center. (Attachments: # 1 Exhibit A, # 2 Exhibit B)(Allgaier, Joan) (Entered: 03/14/2012)
03/14/2012	187	RESPONSE to 149 MOTION in Limine RE: <i>Goodwin's Opinions Concerning Making a "Mistake" or Being "Responsible" for the Accident</i> filed by Defendant Breckenridge Outdoor Education Center. (Allgaier, Joan) (Entered: 03/14/2012)
03/14/2012	188	RESPONSE to 161 MOTION in Limine Re: <i>BOEC's Nonprofit Status</i> filed by Defendant Breckenridge Outdoor Education Center. (Allgaier, Joan) (Entered: 03/14/2012)
03/14/2012	189	Proposed Voir Dire <i>Questions</i> by Defendant Breckenridge Outdoor Education Center. (Allgaier, Joan) (Entered: 03/14/2012)
03/14/2012	190	RESPONSE to 163 Trial Brief and Motion re <i>Highest Duty of Care</i> by Defendant Breckenridge Outdoor Education Center. (Allgaier, Joan) (Entered: 03/14/2012)
03/14/2012	191	RESPONSE to 162 MOTION in Limine Re: <i>Collateral Source</i> filed by Defendant Breckenridge Outdoor Education Center. (Allgaier, Joan) (Entered: 03/14/2012)
03/14/2012	192	Proposed Jury Instructions <i>Defendant Goodwin Additional Proposed Jury Instructions</i> by Defendant James Michael Goodwin. (Attachments: # 1 Exhibit Jury Instructions) (Palumbo, Gary) (Entered: 03/14/2012)
03/14/2012	193	Proposed Jury Instructions by Defendant Breckenridge Outdoor Education Center. (Attachments: # 1 Exhibit A, # 2 Exhibit B)(Allgaier, Joan) (Entered: 03/14/2012)
03/14/2012	194	Proposed Jury Instructions <i>Joint with Defendant James Michael Goodwin</i> by Defendant Breckenridge Outdoor Education Center. (Attachments: # 1 Exhibit A, # 2 Exhibit B) (Allgaier, Joan) (Entered: 03/14/2012)
03/14/2012	195	NOTICE <i>Trial Subpoena David Sutherland</i> by Plaintiff Kimberly N. Squires (Metier, Theodore) (Entered: 03/14/2012)
03/14/2012	196	NOTICE <i>Trial Subpoena Paul Gamber</i> by Plaintiff Kimberly N. Squires (Metier, Theodore) (Entered: 03/14/2012)
03/14/2012	197	NOTICE <i>Trial Subpoena Jennifer Phillips</i> by Plaintiff Kimberly N. Squires (Metier, Theodore) (Entered: 03/14/2012)
03/14/2012	198	NOTICE <i>Trial Subpoena James Michael Goodwin</i> by Plaintiff Kimberly N. Squires (Metier, Theodore) (Entered: 03/14/2012)
03/14/2012	199	Proposed Jury Instructions <i>Additional Proposed Jury Instructions</i> by Defendant James Michael Goodwin. (Attachments: # 1 Exhibit Jury Instructions With Cites, # 2 Exhibit Jury Instructions Without Cites)(Palumbo, Gary) (Entered: 03/14/2012)
03/14/2012	200	First MOTION for Extension of Time to <i>File Proposed Voir Dire Questions</i> by Plaintiff Kimberly N. Squires. (Gold, Gregory) (Entered: 03/14/2012)

03/14/2012	<u>201</u>	Proposed Jury Instructions by Plaintiff Kimberly N. Squires. (Attachments: # <u>1</u> Exhibit, # <u>2</u> Exhibit)(Gold, Gregory) (Entered: 03/14/2012)
03/14/2012	<u>202</u>	RESPONSE to <u>160</u> MOTION in <i>Limine to Exclude Evidence of Liability Release</i> filed by Plaintiff Kimberly N. Squires. (Parsley, Colleen) (Entered: 03/14/2012)
03/14/2012	<u>203</u>	RESPONSE to <u>155</u> MOTION in <i>Limine to Limit Testimony of Plaintiff's Expert Stanley Gale</i> filed by Plaintiff Kimberly N. Squires. (Attachments: # <u>1</u> Exhibit, # <u>2</u> Exhibit, # <u>3</u> Exhibit)(Parsley, Colleen) (Entered: 03/14/2012)
03/14/2012	<u>204</u>	RESPONSE to <u>152</u> MOTION in <i>Limine Re Facts Concerning Defendant Goodwin</i> filed by Plaintiff Kimberly N. Squires. (Gold, Gregory) (Entered: 03/14/2012)
03/14/2012	<u>205</u>	RESPONSE to <u>158</u> MOTION in <i>Limine to Limit Testimony of Plaintiff's Expert Bil Hawkins</i> filed by Plaintiff Kimberly N. Squires. (Attachments: # <u>1</u> Exhibit)(Parsley, Colleen) (Entered: 03/14/2012)
03/14/2012	<u>206</u>	REPLY to Response to <u>148</u> MOTION in <i>Limine to Limit Evidence re Other Ski Accidents</i> filed by Plaintiff Kimberly N. Squires. (Parsley, Colleen) (Entered: 03/14/2012)
03/14/2012	<u>207</u>	RESPONSE to <u>156</u> MOTION in <i>Limine to Exclude Evidence of Whether BOEC was Accredited by the Association for Experiential Education</i> filed by Plaintiff Kimberly N. Squires. (Parsley, Colleen) (Entered: 03/14/2012)
03/14/2012	<u>208</u>	RESPONSE to <u>146</u> MOTION in <i>Limine to Strike Late and Previously Undisclosed Exhibits and Records</i> filed by Plaintiff Kimberly N. Squires. (Attachments: # <u>1</u> Exhibit, # <u>2</u> Exhibit)(Gold, Gregory) (Entered: 03/14/2012)
03/14/2012	<u>209</u>	RESPONSE to <u>153</u> MOTION in <i>Limine Re Insurance Coverage</i> filed by Plaintiff Kimberly N. Squires. (Gold, Gregory) (Entered: 03/14/2012)
03/14/2012	<u>210</u>	RESPONSE to <u>145</u> MOTION in <i>Limine to Exclude Evidence of Plaintiff's Claim of Alleged Wrongdoing by BOEC Volunteer James Trisler</i> filed by Plaintiff Kimberly N. Squires. (Gold, Gregory) (Entered: 03/14/2012)
03/14/2012	<u>211</u>	RESPONSE to <u>147</u> MOTION in <i>Limine to Limit Testimony of Plaintiff's Health-Care Providers</i> filed by Plaintiff Kimberly N. Squires. (Attachments: # <u>1</u> Exhibit, # <u>2</u> Exhibit) (Parsley, Colleen) (Entered: 03/14/2012)
03/14/2012	<u>212</u>	RESPONSE to <u>154</u> MOTION in <i>Limine to Preclude Expert Testimony Re Whether BOEC was Reckless</i> filed by Plaintiff Kimberly N. Squires. (Gold, Gregory) (Entered: 03/14/2012)
03/14/2012	<u>213</u>	RESPONSE to <u>157</u> MOTION in <i>Limine to Exclude Evidence of Defectiveness or Insufficiency of Bi-Ski</i> filed by Plaintiff Kimberly N. Squires. (Gold, Gregory) (Entered: 03/14/2012)
03/14/2012	<u>214</u>	RESPONSE to <u>149</u> MOTION in <i>Limine RE: Goodwin's Opinions Concerning Making a "Mistake" or Being "Responsible" for the Accident</i> filed by Plaintiff Kimberly N. Squires. (Gold, Gregory) (Entered: 03/14/2012)
03/14/2012	<u>215</u>	RESPONSE to <u>150</u> MOTION in <i>Limine RE: Goodwin's Alleged Violation of the Colorado Ski Safety Act and Other Alleged Codes</i> filed by Plaintiff Kimberly N. Squires. (Gold, Gregory) (Entered: 03/14/2012)
03/14/2012	<u>216</u>	RESPONSE to <u>159</u> MOTION in <i>Limine re Scope of Expert Testimony</i> filed by Plaintiff Kimberly N. Squires. (Gold, Gregory) (Entered: 03/14/2012)
03/15/2012	<u>217</u>	NOTICE Trial Subpoena Kristin Fuller by Plaintiff Kimberly N. Squires (Metier, Theodore) (Entered: 03/15/2012)

03/15/2012	218	NOTICE re 164 Notice (Other) <i>Trial Subpoena Waiver David Anderson, MD</i> by Plaintiff Kimberly N. Squires (Metier, Theodore) (Entered: 03/15/2012)
03/15/2012	219	NOTICE re 166 Notice (Other) <i>Trial Subpoena Waiver Stanley Gale</i> by Plaintiff Kimberly N. Squires (Metier, Theodore) (Entered: 03/15/2012)
03/15/2012	220	NOTICE re 170 Notice (Other) <i>Trial Subpoena Waiver John Schwappach, MD</i> by Plaintiff Kimberly N. Squires (Metier, Theodore) (Entered: 03/15/2012)
03/15/2012	221	NOTICE re 168 Notice (Other) <i>Trial Subpoena Waiver Jeffrey Opp</i> by Plaintiff Kimberly N. Squires (Metier, Theodore) (Entered: 03/15/2012)
03/15/2012	222	NOTICE re 169 Notice (Other) <i>Trial Subpoena Waiver Robert Rinaldi, MD</i> by Plaintiff Kimberly N. Squires (Metier, Theodore) (Entered: 03/15/2012)
03/16/2012	223	ORDER granting 200 Plaintiff's Motion for Extension of Time to File Proposed Voir Dire Questions up to and including March 16, 2012. By Magistrate Judge Craig B. Shaffer on 03/16/2012. Text Only Entry (cbslc1) (Entered: 03/16/2012)
03/16/2012	224	Proposed Voir Dire by Plaintiff Kimberly N. Squires. (Metier, Theodore) (Entered: 03/16/2012)
03/20/2012	225	MINUTE ORDER by Magistrate Judge Craig B. Shaffer on 3/20/2012. Motion Hearing RESET to 3/20/2012 01:00 PM in Courtroom A 402 before Magistrate Judge Craig B. Shaffer. Text Only Entry (cbscd,) (Entered: 03/20/2012)
03/20/2012	226	NOTICE <i>Amended Trial Subpoena Eugene Evra, MD</i> by Plaintiff Kimberly N. Squires (Metier, Theodore) (Entered: 03/20/2012)
03/20/2012	227	AFFIDAVIT/RETURN of Service of Trial Subpoena upon Paul Gamber on 3/16/12, filed by Plaintiff Kimberly N. Squires (Metier, Theodore) (Entered: 03/20/2012)
03/20/2012	228	AFFIDAVIT/RETURN of Service of Trial Subpoena upon David Sutherland on 3/16/12, filed by Plaintiff Kimberly N. Squires (Metier, Theodore) (Entered: 03/20/2012)
03/20/2012	229	AFFIDAVIT/RETURN of Service of Trial Subpoena upon Jennifer Phillips on 3/18/12, filed by Plaintiff Kimberly N. Squires (Metier, Theodore) (Entered: 03/20/2012)
03/20/2012	230	NOTICE re 173 Notice (Other) <i>Trial Subpoena Waiver Eugene Evra, MD</i> by Plaintiff Kimberly N. Squires (Metier, Theodore) (Entered: 03/20/2012)
03/20/2012	232	MINUTE ENTRY for proceedings held before Magistrate Judge Craig B. Shaffer: Motion Hearing held on 3/20/2012. On 3/23/2012, the parties shall provide the court with two (2) sets of exhibit notebooks as well as two (2) sets of their finalized witness and exhibit lists. For reasons as stated on the record: the court HOLDS IN ABEYANCE 146 Motion in Limine; DENIES 147 Motion in Limine; DENIES 149 Motion in Limine; GRANTS 151 Motion in Limine; GRANTS IN PART AND DENIES IN PART 152 Motion in Limine; GRANTS IN PART AND DENIES IN PART 153 Motion in Limine; HOLDS IN ABEYANCE 156 Motion in Limine; GRANTS 157 Motion in Limine; GRANTS 158 Motion in Limine; GRANTS 159 Motion in Limine; and GRANTS 161 Motion in Limine. This Motion Hearing is continued to 3/22/2012 02:00 PM in Courtroom A 402 before Magistrate Judge Craig B. Shaffer. Between now and 3/22/2012 at 2:00 p.m., counsel for the plaintiff shall identify, for the defendant, the evidence it believes is substantially similar for purposes of Rule 404(b). The court will address those specific events at that time. (FTR: Robin Mason) (cbscd,) (Entered: 03/21/2012)
03/21/2012	231	AFFIDAVIT/RETURN of Service <i>Waiver</i> of Trial Subpoena upon Joe Kusumoto on March 20, 2012, filed by Defendant Breckenridge Outdoor Education Center (Allgaier, Joan) (Entered: 03/21/2012)

03/21/2012	233	DESIGNATION OF DEPOSITION TESTIMONY <i>Jennifer Pico</i> by Defendant Breckenridge Outdoor Education Center. (Grund, John) (Entered: 03/21/2012)
03/21/2012	234	DESIGNATION OF DEPOSITION TESTIMONY <i>James Trisler</i> by Defendant Breckenridge Outdoor Education Center. (Grund, John) (Entered: 03/21/2012)
03/21/2012	235	AFFIDAVIT/RETURN of Service <i>Waiver</i> of Trial Subpoena upon Margot Burns on 3/21/12, filed by Defendant Breckenridge Outdoor Education Center (Grund, John) (Entered: 03/21/2012)
03/21/2012	236	AFFIDAVIT/RETURN of Service <i>Waiver</i> of Trial Subpoena upon Ruth DeMuth on 3/19/12, filed by Defendant Breckenridge Outdoor Education Center (Grund, John) (Entered: 03/21/2012)
03/22/2012	237	FINAL PRETRIAL ORDER by Magistrate Judge Craig B. Shaffer on 3/22/2012. (Attachments: # 1 Exhibit Plaintiff's Revised Witness List, # 2 Exhibit Defendant Goodwin's Witness List, # 3 Exhibit Defendant BOEC's Revised Witness List, # 4 Exhibit Plaintiff's Revised Exhibit List, # 5 Exhibit Defendant Goodwin's Exhibit List, # 6 Exhibit Defendant BOEC's Revised Exhibit List) (cbslc1) (Entered: 03/22/2012)
03/22/2012	242	MINUTE ENTRY for proceedings held before Magistrate Judge Craig B. Shaffer: Motion Hearing held on 3/22/2012. The court DENIES 145 Motion in Limine. The court DENIES 146 Motion in Limine. The court DENIES 148 Motion in Limine. The court GRANTS IN PART AND DENIES IN PART 150 Motion in Limine. The court GRANTS 154 Motion in Limine. The court GRANTS 155 Motion in Limine. The court GRANTS IN PART AND DENIES IN PART 156 Motion in Limine. The court GRANTS 160 Motion in Limine. The court GRANTS 162 Motion in Limine. (FTR: Robin Mason) (cbscd,) (Entered: 03/23/2012)
03/22/2012	255	MINUTE ENTRY for proceedings held before Magistrate Judge Craig B. Shaffer: Amended 242 Minute Entry. Amended to add the case caption. (FTR: Robin Mason) (cbscd,) (Entered: 03/27/2012)
03/23/2012	238	Proposed Jury Instructions <i>Proposed Limiting Instruction</i> by Defendant James Michael Goodwin. (Palumbo, Gary) (Entered: 03/23/2012)
03/23/2012	239	Expert Witness Designation of <i>Testimony From Deposition of James Trisler, March 15, 2012</i> by Defendant James Michael Goodwin. (Palumbo, Gary) (Entered: 03/23/2012)
03/23/2012	240	Witness List by Defendant Breckenridge Outdoor Education Center. (Allgaier, Joan) (Entered: 03/23/2012)
03/23/2012	241	Exhibit List by Defendant Breckenridge Outdoor Education Center. (Allgaier, Joan) (Entered: 03/23/2012)
03/23/2012	243	MOTION to Strike <i>Defendant Goodwin's Trial Exhibit R and to Preclude Defendant Goodwin's Expert Seth Bayer from Testifying to What is Contained In It</i> by Defendant Breckenridge Outdoor Education Center. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C)(Allgaier, Joan) (Entered: 03/23/2012)
03/23/2012	244	Exhibit List by Defendant James Michael Goodwin. (Palumbo, Gary) (Entered: 03/23/2012)
03/23/2012	245	Witness List by Defendant James Michael Goodwin. (Palumbo, Gary) (Entered: 03/23/2012)
03/23/2012	251	Exhibit List by Defendant Breckenridge Outdoor Education Center. (jjpsl,) (Entered: 03/27/2012)

03/23/2012	252	Witness List by Defendant Breckenridge Outdoor Education Center. (jjpsl,) (Entered: 03/27/2012)
03/25/2012	246	Exhibit List by Plaintiff Kimberly N. Squires. (Parsley, Colleen) (Entered: 03/25/2012)
03/25/2012	247	Witness List by Plaintiff Kimberly N. Squires. (Parsley, Colleen) (Entered: 03/25/2012)
03/26/2012	248	STIPULATION of Dismissal of Party <i>James Michael Goodwin</i> by Defendant James Michael Goodwin, Plaintiff Kimberly N. Squires. (Attachments: # 1 Proposed Order (PDF Only) Order to Dismiss Goodwin)(Palumbo, Gary) (Entered: 03/26/2012)
03/26/2012	249	AFFIDAVIT/RETURN of Service <i>Waiver</i> of Trial Subpoena upon Patrick Kelley on 3-26-12, filed by Defendant Breckenridge Outdoor Education Center (Grund, John) (Entered: 03/26/2012)
03/26/2012	250	DESIGNATION OF DEPOSITION TESTIMONY <i>of James Trisler, March 15, 2012</i> by Plaintiff Kimberly N. Squires. (Parsley, Colleen) (Entered: 03/26/2012)
03/26/2012	253	ORDER re: 248 Stipulation to Dismiss with Prejudice Plaintiff's Claims Against Defendant James Michael Goodwin filed by James Michael Goodwin, Kimberly N. Squires. By Magistrate Judge Craig B. Shaffer on 3/26/2012. (jjpsl,) (Entered: 03/27/2012)
03/26/2012	257	MINUTE ENTRY for proceedings held before Magistrate Judge Craig B. Shaffer: Jury Trial - Day One held on 3/26/2012. (FTR: Robin Mason) (cbscd,) (Entered: 03/28/2012)
03/27/2012	254	Exhibit List <i>Amended</i> by Defendant Breckenridge Outdoor Education Center. (Allgaier, Joan) (Entered: 03/27/2012)
03/27/2012	256	SUPPLEMENT/AMENDMENT to 237 Pretrial Order, by Defendant Breckenridge Outdoor Education Center. (Allgaier, Joan) (Entered: 03/27/2012)
03/27/2012	259	MINUTE ENTRY for proceedings held before Magistrate Judge Craig B. Shaffer: Jury Trial - Day Two held on 3/27/2012. Mr. Grund makes an oral motion for a mistrial. The court will take this oral motion UNDER ADVISEMENT and revisit this matter before the start of the trial tomorrow, 3/28/2012. The court will continue to review 250 DESIGNATION OF DEPOSITION TESTIMONY of James Trisler and further address this matter before the start of the trial tomorrow, 3/28/2012. Trial continued. (FTR: Robin Mason) (cbscd,) (Entered: 03/28/2012)
03/28/2012	258	Exhibit List <i>Second Amended</i> by Defendant Breckenridge Outdoor Education Center. (Allgaier, Joan) (Entered: 03/28/2012)
03/28/2012	260	MINUTE ENTRY for proceedings held before Magistrate Judge Craig B. Shaffer: Jury Trial - Day Three held on 3/28/2012. The court DENIES Mr. Grund's oral motion for a mistrial. Plaintiff's counsel must submit a new exhibit list (and corresponding exhibits) that does not make any reference to Ms. Baca or the word insurance prior to 1:30 p.m. today (March 28, 2012). (FTR: Robin Mason) (cbscd,) Modified on 3/28/2012 to add the date of the trial (romsl,). (Entered: 03/28/2012)
03/28/2012	261	Exhibit List <i>Amended</i> by Plaintiff Kimberly N. Squires. (Parsley, Colleen) (Entered: 03/28/2012)
03/28/2012	263	MINUTE ENTRY for proceedings held before Magistrate Judge Craig B. Shaffer: Amended re 260 Jury Trial - Day Three. Amended to reflect the correct admitted exhibit. (FTR: Robin Mason) (cbscd,) (Entered: 03/29/2012)
03/29/2012	262	NOTICE <i>Waiver and Acceptance of Trial Subpoena</i> by Plaintiff Kimberly N. Squires (DiBenedetto, Patrick) (Entered: 03/29/2012)

03/29/2012	264	MINUTE ENTRY for proceedings held before Magistrate Judge Craig B. Shaffer: Jury Trial - Day Four held on 3/29/2012. Hearing Continued. (FTR: Robin Mason) (cbscd,) (Entered: 03/30/2012)
03/30/2012	265	Exhibit List <i>Third Amended</i> by Defendant Breckenridge Outdoor Education Center. (Allgaier, Joan) (Entered: 03/30/2012)
03/30/2012	266	MINUTE ENTRY for proceedings held before Magistrate Judge Craig B. Shaffer: Jury Trial - Day Five held on 3/30/2012. Hearing continued. (FTR: Robin Mason) (cbscd,) (Entered: 03/30/2012)
04/02/2012	267	Proposed Jury Instructions <i>Additional and Amended</i> by Defendant Breckenridge Outdoor Education Center. (Attachments: # 1 Exhibit A, # 2 Exhibit B)(Allgaier, Joan) (Entered: 04/02/2012)
04/02/2012	268	Proposed Jury Instructions <i>Stipulated with Plaintiff</i> by Defendant Breckenridge Outdoor Education Center. (Attachments: # 1 Exhibit A, # 2 Exhibit B)(Allgaier, Joan) (Entered: 04/02/2012)
04/02/2012	269	Proposed Jury Instructions <i>Additional and Amended</i> by Plaintiff Kimberly N. Squires. (Attachments: # 1 Exhibit A, # 2 Exhibit B)(Parsley, Colleen) (Entered: 04/02/2012)
04/02/2012	271	MINUTE ENTRY for proceedings held before Magistrate Judge Craig B. Shaffer: Jury Trial - Day Six held on 4/2/2012. Hearing continued. (FTR: Robin Mason) (cbscd,) (Entered: 04/03/2012)
04/03/2012	270	Exhibit List <i>Fourth Amended</i> by Defendant Breckenridge Outdoor Education Center. (Allgaier, Joan) (Entered: 04/03/2012)
04/03/2012	272	MINUTE ENTRY for proceedings held before Magistrate Judge Craig B. Shaffer: Jury Trial - Day Seven held on 4/3/2012. Discussion between court and parties regarding whether Mr. Goodman has conceded negligence and if this should have an impact on the instructions given to the jury. The court RESERVES its ruling on these matters. These issues will go to the jury but the court will allow these subjects to be revisited if deemed necessary. Hearing continued. (FTR: Robin Mason) (cbscd,) (Entered: 04/04/2012)
04/03/2012	274	MINUTE ENTRY for proceedings held before Magistrate Judge Craig B. Shaffer: Amended re 272 Jury Trial - Day Seven. The minutes were amended to reflect when the plaintiffs rested. (FTR: Robin Mason) (cbscd,) (Entered: 04/04/2012)
04/04/2012	273	Exhibit List <i>Fifth Amended</i> by Defendant Breckenridge Outdoor Education Center. (Allgaier, Joan) (Entered: 04/04/2012)
04/04/2012	275	ORDER denying as moot 243 Defendant BOEC's Motion to Strike Defendant Goodwin's Trial Exhibit R, based on the stipulated dismissal of Plaintiff's claims against Defendant Goodwin before the trial commenced. By Magistrate Judge Craig B. Shaffer on 04/04/2012. Text Only Entry (cbslc1) (Entered: 04/04/2012)
04/04/2012	276	MINUTE ENTRY for proceedings held before Magistrate Judge Craig B. Shaffer: Jury Trial - Day Eight held on 4/4/2012. Mr. Grund makes an oral motion to withdraw the Defendant's Exhibit Z3 in light of the Plaintiff's admitted Exhibit 310. Defendant's Exhibit Z3 shall be WITHDRAWN. Hearing continued. (FTR: Robin Mason) (cbscd,) (Entered: 04/06/2012)
04/05/2012	277	MINUTE ENTRY for proceedings held before Magistrate Judge Craig B. Shaffer: Jury Trial - Day Nine completed on 4/5/2012. JURY VERDICT is received. Judgment is entered in favor of Defendant and against Plaintiff. (FTR:Robin Mason,) (Attachments: # 1 Redacted Jury Verdict, # 2 Jury Instructions, # 3 Plaintiff's Exhibit List, # 4 Defendant's

		Exhibit List, # 5 Plaintiff's Witness List, # 6 Defendant's Witness List) (cbscd,) (Entered: 04/06/2012)
04/10/2012	278	STIPULATION AND ORDER REGARDING CUSTODY OF EXHIBITS AND DEPOSITIONS, by Magistrate Judge Craig B. Shaffer on 4/5/2012. (jjpsl,) (Entered: 04/10/2012)
04/12/2012	279	FINAL JUDGMENT by Clerk, re: 277 Jury Trial - Completed. By Clerk on 4/12/12. (mnfsl,) (Entered: 04/13/2012)
04/26/2012	280	Proposed Bill of Costs by Defendant Breckenridge Outdoor Education Center. (Attachments: # 1 Affidavit Joan S. Allgaier, # 2 Attachment 1, # 3 Attachment 2, # 4 Attachment 3, Part 1, # 5 Attachment 3, Part 2, # 6 Attachment 3, Part 3, # 7 Attachment 3, Part 4)(Grund, John) (Entered: 04/26/2012)
05/11/2012	281	NOTICE OF APPEAL as to 279 Clerk's Judgment, 120 Order on Motion for Summary Judgment,, by Plaintiff Kimberly N. Squires (Filing fee \$ 455, Receipt Number 1082-2836093) (Miller, Robert) (Entered: 05/11/2012)
05/14/2012	282	LETTER Transmitting Notice of Appeal to all counsel advising of the transmittal of the 281 Notice of Appeal filed by Kimberly N. Squires to the U.S. Court of Appeals. (Retained Counsel, Fee paid,) (Attachments: # 1 Docket Sheet, # 2 Preliminary Record) (sahsl,) (Entered: 05/14/2012)
05/14/2012	311	USCA Case Number 12-1199 for 281 Notice of Appeal filed by Kimberly N. Squires. (lswsl,) (Entered: 08/21/2012)
05/24/2012	283	TRANSCRIPT ORDER FORM re 281 Notice of Appeal by Plaintiff Kimberly N. Squires (Miller, Robert) (Entered: 05/24/2012)
05/30/2012	284	NOTICE of Entry of Appearance <i>Danielle M. Rattray</i> by Colleen M. Parsley on behalf of Kimberly N. Squires (Parsley, Colleen) (Entered: 05/30/2012)
05/30/2012	285	Costs Taxed in amount of \$ 16,294.47 against Plaintiff. (wjcsl,) (Entered: 05/31/2012)
05/31/2012	286	TRANSCRIPT ORDER FORM re 281 Notice of Appeal (<i>Amended Transcript Order</i>) by Plaintiff Kimberly N. Squires (Miller, Robert) (Entered: 05/31/2012)
06/06/2012	287	MOTION for Review re 285 Costs Taxed by Defendant Breckenridge Outdoor Education Center. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E, # 6 Exhibit F, # 7 Exhibit G, # 8 Exhibit H, # 9 Exhibit I, # 10 Exhibit J, # 11 Exhibit K, # 12 Exhibit L, # 13 Exhibit M, # 14 Exhibit N, # 15 Exhibit O, # 16 Exhibit P, # 17 Exhibit Q, # 18 Exhibit R)(Allgaier, Joan) (Entered: 06/06/2012)
06/27/2012	288	RESPONSE to 287 MOTION for Review re 285 Costs Taxed filed by Plaintiff Kimberly N. Squires. (Gold, Gregory) (Entered: 06/27/2012)
07/02/2012	290	REPORTER TRANSCRIPT ORDER FORM filed by Avery Woods; Transcripts ordered 3/26/12 - 4/12/12; 5/23/11; 7/20/11; 10/20/11 re: 286 Transcript Order Form, 281 Notice of Appeal. Transcript due by 8/18/2012. (lswsl,) (Entered: 07/03/2012)
07/03/2012	289	ORDER setting hearing on 287 MOTION for Review re 285 Costs Taxed. ORDERED that a Motion Hearing has been set for 8/9/2012 at 2:00 PM in Courtroom A 402 before Magistrate Judge Craig B. Shaffer, by Magistrate Judge Craig B. Shaffer on 7/3/12. Text Only Entry (cbssec) (Entered: 07/03/2012)
07/05/2012	291	ORDER resetting motion hearing upon an unopposed request from counsel. ORDERED that a hearing on 287 MOTION for Review re 285 Costs Taxed will be held on 7/31/2012 at 2:00 PM in Courtroom A 402 before Magistrate Judge Craig B. Shaffer. Text Only Entry by Magistrate Judge Craig B. Shaffer on 7/5/12. (cbssec) (Entered: 07/05/2012)

07/10/2012	<u>292</u>	TRANSCRIPT ORDER FORM re <u>281</u> Notice of Appeal (<i>Supplemental Order Form</i>) by Plaintiff Kimberly N. Squires (Miller, Robert) (Entered: 07/10/2012)
07/11/2012	<u>293</u>	REPLY to Response to <u>287</u> MOTION for Review re <u>285</u> Costs Taxed filed by Defendant Breckenridge Outdoor Education Center. (Allgaier, Joan) (Entered: 07/11/2012)
07/24/2012	<u>294</u>	NOTICE of Supplemental Authorities re: <u>288</u> Response to Motion by Plaintiff Kimberly N. Squires (Gold, Gregory) (Entered: 07/24/2012)
07/30/2012	<u>295</u>	REPORTER TRANSCRIPT ORDER FORM filed by Avery Woods; Transcripts ordered 3/20/12 and 3/22/12 re: <u>292</u> Transcript Order Form, <u>281</u> Notice of Appeal. Transcript due by 9/1/2012. (lswsl,) (Entered: 07/31/2012)
07/31/2012	<u>296</u>	MINUTE ENTRY for proceedings held before Magistrate Judge Craig B. Shaffer: Motion Hearing held on 7/31/2012. The court TAKES UNDER ADVISEMENT <u>287</u> Motion for Review. FTR: Robin Mason. (cbscd,) (Entered: 07/31/2012)
08/16/2012	<u>297</u>	TRANSCRIPT of Motions Hearing held on 05/23/2011 before Magistrate Judge Shaffer. Pages: 1-93. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 11/19/2012. (Avery Woods Reporting,) (Entered: 08/16/2012)
08/16/2012	<u>298</u>	TRANSCRIPT of Motions Hearing held on 07/20/2011 before Magistrate Judge Shaffer. Pages: 1-90. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 11/19/2012. (Avery Woods Reporting,) (Entered: 08/16/2012)
08/16/2012	<u>299</u>	TRANSCRIPT of Motions Hearing held on 03/22/2012 before Magistrate Judge Shaffer. Pages: 1-112. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov.

		Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 11/19/2012. (Avery Woods Reporting,) (Entered: 08/16/2012)
08/16/2012	300	TRANSCRIPT of Motions Hearing held on 03/20/2012 before Magistrate Judge Shaffer. Pages: 1-134. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 11/19/2012. (Avery Woods Reporting,) (Entered: 08/16/2012)
08/17/2012	301	TRANSCRIPT of Jury Trial held on 3-26-12 before Magistrate Judge Shaffer. Pages: 1-279. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 11/19/2012. (Avery Woods Reporting,) (Entered: 08/17/2012)
08/17/2012	302	TRANSCRIPT of Jury Trial held on 3-27-12 before Magistrate Judge Shaffer. Pages: 280-570. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 11/19/2012. (Avery Woods Reporting,) (Entered: 08/17/2012)
08/17/2012	303	TRANSCRIPT of Jury Trial held on 3-28-12 before Magistrate Judge Shaffer. Pages: 571-858. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the

		court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 11/19/2012. (Avery Woods Reporting,) (Entered: 08/17/2012)
08/17/2012	304	TRANSCRIPT of Jury Trial held on 3-29-12 before Magistrate Judge Shaffer. Pages: 859-1088. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 11/19/2012. (Avery Woods Reporting,) (Entered: 08/17/2012)
08/17/2012	305	TRANSCRIPT of Jury Trial held on 3-30-12 before Magistrate Judge Shaffer. Pages: 1089-1322. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 11/19/2012. (Avery Woods Reporting,) (Entered: 08/17/2012)
08/17/2012	306	TRANSCRIPT of Jury Trial held on 4-2-12 before Magistrate Judge Shaffer. Pages: 1323-1563. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 11/19/2012. (Avery Woods Reporting,) (Entered: 08/17/2012)
08/17/2012	307	TRANSCRIPT of Jury Trial held on 4-3-12 before Magistrate Judge Shaffer. Pages: 1564-1886.

		NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 11/19/2012. (Avery Woods Reporting,) (Entered: 08/17/2012)
08/17/2012	308	TRANSCRIPT of Jury Trial held on 4-4-12 before Magistrate Judge Shaffer. Pages: 1887-2113. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 11/19/2012. (Avery Woods Reporting,) (Entered: 08/17/2012)
08/17/2012	309	TRANSCRIPT of Jury Trial held on 4-5-12 before Magistrate Judge Shaffer. Pages: 2114-2168. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 11/19/2012. (Avery Woods Reporting,) (Entered: 08/17/2012)
08/17/2012	310	LETTER TO USCA and all counsel certifying the record is complete as to 281 Notice of Appeal filed by Kimberly N. Squires. All transcripts ordered are now on file as of 8/17/2012. (Appeal No. 12-1199) Text Only Entry (lsWSL,) (Entered: 08/21/2012)
12/06/2012	312	ORDER setting a hearing on Defendant BOEC's 287 Motion to Review Taxation of Costs. Additional argument will not be necessary as the purpose of the hearing is for the court to issue a ruling on the instant motion from the bench. ORDERED that a Status Conference will be held on 12/20/2012 at 3:30 PM in Courtroom A 402 before Magistrate Judge Craig B. Shaffer. Text Only Entry by Magistrate Judge Craig B. Shaffer on 12/6/12. (cbssec) (Entered: 12/06/2012)
12/20/2012	313	MINUTE ENTRY for proceedings held before Magistrate Judge Craig B. Shaffer: Status Conference held on 12/20/2012. As stated on the record, defense counsel shall have twenty-one (21) days to provide the court with additional information pertaining to the

		pending motion; plaintiff's counsel shall have fourteen (14) days in which to respond. The parties inform the court that they would like to discuss this with their clients before proceeding. The court advises the parties that after all information has been received by the court, it shall determine if further arguments are needed. FTR: Robin Mason. (cbscd,) (Entered: 12/21/2012)
03/18/2013	314	ORDER setting additional hearing on 287 MOTION for Review re 285 Costs Taxed. ORDERED that a hearing will be held on 3/29/2013 at 10:00 AM in Courtroom A 402 before Magistrate Judge Craig B. Shaffer. Additional argument will not be necessary; the purpose of the hearing is to issue a ruling on the instant motion from the bench. Text Only Entry by Magistrate Judge Craig B. Shaffer on 3/18/13. (cbssec) (Entered: 03/18/2013)
03/20/2013	315	ORDER vacating the March 29, 2013 Motion Hearing. The court will issue a written order on the 287 Motion for 285 Costs Taxed. Text Only Entry by Magistrate Judge Craig B. Shaffer on 3/20/13. (cbssec) (Entered: 03/20/2013)
03/27/2013	316	ORDER granting in part and denying in part 287 BOEC's Motion to Review Taxation of Costs. By Magistrate Judge Craig B. Shaffer on 03/27/2013. (cbslc1) (Entered: 03/27/2013)
04/26/2013	317	NOTICE OF APPEAL as to 316 Order on Motion for Review of <i>Taxation of Costs</i> by Plaintiff Kimberly N. Squires (Filing fee \$ 455, Receipt Number 1082-3335667) (Miller, Robert) (Entered: 04/26/2013)
04/29/2013	318	LETTER Transmitting Notice of Appeal to all counsel advising of the transmittal of the 317 Notice of Appeal filed by Kimberly N. Squires to the U.S. Court of Appeals. (Retained Counsel, Fee paid) (Attachments: # 1 Docket Sheet, # 2 Preliminary Record) (lswsl) (Entered: 04/29/2013)
04/29/2013	319	USCA Case Number 13-1176 for 317 Notice of Appeal filed by Kimberly N. Squires. (lswsl) (Entered: 04/29/2013)
05/07/2013	320	USCA Opinion and Judgment as to 281 Notice of Appeal filed by Kimberly N. Squires : AFFIRMED. (USCA Case No. 12-1199) (This document is not the Mandate) (Attachments: # 1 USCA Judgment)(lswsl) (Entered: 05/07/2013)
05/14/2013	321	TRANSCRIPT ORDER FORM re 317 Notice of Appeal <i>as to Order on Motion for Review of Taxation of Costs</i> by Plaintiff Kimberly N. Squires (Sink, Michael) (Entered: 05/14/2013)
05/29/2013	322	MANDATE of USCA as to 320 USCA Order/Opinion/Judgment, 281 Notice of Appeal filed by Kimberly N. Squires. (USCA Case No. 12-1199) (lswsl) (Entered: 05/29/2013)
06/04/2013	323	REPORTER TRANSCRIPT ORDER FORM filed by Terre Lynch (Avery Woods Reporting) re: 317 Notice of Appeal. Transcripts due by 7/10/2013. (nsteff) (Entered: 06/13/2013)
07/02/2013	324	TRANSCRIPT of Motion Hearing held on 7-31-12 before Magistrate Judge Shaffer. Pages: 1-23. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER.

		Release of Transcript Restriction set for 10/3/2013. (Avery Woods Reporting,) (Entered: 07/02/2013)
07/02/2013	325	TRANSCRIPT of Status Conference held on 12-20-12 before Magistrate Judge Shaffer. Pages: 1-90. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 10/3/2013. (Avery Woods Reporting,) (Entered: 07/02/2013)
07/03/2013	326	LETTER TO USCA and all counsel certifying the record is complete as to 317 Notice of Appeal filed by Kimberly N. Squires. All transcripts ordered are now on file as of 7/2/2013. (Appeal No. 13-1176) Text Only Entry (dbrow,) (Entered: 07/03/2013)
07/09/2013	327	ORDER of USCA as to 317 Notice of Appeal filed by Kimberly N. Squires. This appeal is dismissed. (USCA Case No. 13-1176) (dbrow,) (Entered: 07/09/2013)
07/09/2013	328	MANDATE of USCA as to 317 Notice of Appeal filed by Kimberly N. Squires : (USCA Case No. 13-1176) (dbrow,) (Entered: 07/09/2013)

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